

STANDARD OPERATING PROCEDURE FOR IPR SUPPORT

1. Criteria for Intellectual Property Rights (IPR) support:

Startup must be certified under Bihar Startup Policy. If the startup has received Fund under Bihar Startup Policy and have developed any Intellectual Property then Startup's may apply for reimbursement of expenditure incurred in registering IPR through our portal (startup.bihar.gov.in) or through mail (id-startup-bih@gov.in)

2. Eligibility for IPR Support:

Sl.No.	Eligibility Criteria	Particulars
1.	Time Line of application	A startup is required to apply within a maximum of two (2) months after receiving the IPR certificate.
2.	Assistance / Subsidy / incentive from others	If the Startup has availed any assistance/ subsidy/ incentives towards the registration of the same IPR under any scheme/ policy of State Government or Central Government scheme / agencies of any financial/ educational institution of the country or abroad, it shall be eligible for the differential amount of benefits only.
3.	Eligible cost	Startup applied and allotted the IPR 1. Cost of application form, processing charges and all other costs/charges/fees paid to the competent registering authority. and 2. Actual expenditure incurred on documentation for the purpose of registration of patent/ IPR including actual consultant fees and cost of work of preparation, reprography of art work, industrial design, etc. upto maximum limit of Rs. 0.50 Lakhs Or Startup applied and not allotted the IPR 3. Cost of application form, processing charges and all other costs/charges/fees paid to the competent registering authority. and 4. Actual expenditure incurred on documentation for the purpose of registration of patent/ IPR including actual fees paid to

		the consultants as consultancy fees and cost of work of preparation, reprography of art work, industrial design, etc. upto maximum limit of Rs 0.50 Lakhs.
4.	Nature of assistance	Grant
5.	Mode of Payment	Reimbursement of actual amount incurred or upto the maximum limit prescribed.
6.	IPR holder	IPR must be in the name of the Business Entity
7.	Number of Patent	Startup may hold any number of Patent

3. Amount of assistance for different type of IPRs per startup:

Sl.No.	Type of IPRs	Reimbursement Amount (Actual Expenditure or upto)
1.	Indian Patent	Rs. 1 Lakhs
2.	Foreign Patent	Rs. 5 Lakhs
3.	Geographical Indications	Rs. 2 Lakhs
4.	Trademarks	Rs. 0.10 Lakhs
5.	Industrial Design	Rs. 0.15 Lakhs
6.	Applied for IPR and rejected the competent authority	Actual charges paid to competent registering authority plus actual expenditure incurred for documentation/ Consultancy fees/ cost of work of preparation, reprography of art work, industrial design, etc. upto maximum limit of Rs 0.50 Lakhs.

4. Documents required for Disbursement of IPR Support:

- i. IPR allotment certificates
- ii. Copy of invoice / acknowledgement for fee paid for application form, processing charges and all other cost/ charges/ fees or other certified charges.
- iii. GST invoice for fee paid for consultancy/ documentation/ fee paid for work of preparation, reprography of art work, industrial design, etc.

- iv. Undertaking as per the format attached in Annexure-I

5. Disbursement of IPR Support:

IPR support shall be disbursed to startup after approval from PSC and post facto approval will be taken by SMIC.

Glossary:

1. **Intellectual Property:** Intellectual Property (IP) refers to any intellectual creation of mind. Intellectual Property Laws give people the right to own and profit from their artistic, scientific and technological creation for a designated period of time.
2. **Intellectual Property Rights:** Intellectual Property Rights (IPR) are the legal rights governing the use of intellectual property.
3. **Various types of IPRs:** Patent, Copyrights, Trademarks, Industrial Designs, Geographical Indication, Trade Secrets.
4. **Patents:** A Patent is a government granted and secured legal right to prevent others from making, using or selling the inventions covered by the patent. Most Patents are valid for 20 years.
5. **Copyrights:** Right given to creator for their literary and artistic works. It is valid for the life of author plus 60 years after his death.
6. **Trademarks:** Trademarks are distinctive signs which identifies certain goods or services as those provided by a specific enterprise. Initially it is valid for 10 years, thereafter it may be renewed from time to time.
7. **Industrial Design:** Industrial Design refers to composition of colours or lines which give a three- dimensional look to a handicraft or product. This constitutes the aesthetic or ornamental part of an article in a legal sense. Initially it is valid for 10 years and further renewed for 5 years.
8. **Geographical Indications:** Geographical Indications (GI) are signs used on goods that have a specific geographical origin and possesses qualities, reputation or characteristic that are essentially attributable to the place of origin.
In India, a GI may be statutorily protected either as a certification trademark under the Trade Marks Act, 1999 or as a GI under the Goods (Registration and Protection) Act, 1999. Initially it is valid for 10 years, thereafter it may be renewed from time to time.
9. **Trade Secrets:** Trade Secrets refers to any confidential business information that provides a competitive edge. Trade secrets are protected without registration for an unlimited period of time.

Annexure- I

Undertaking

(On Startup Letterhead)

We have read the eligibility & conditions for IPR support.

We hereby declare that all the information provided by us is true and correct. We have not hidden any information that could impact the decision to approve the assistance in IPR support under the scheme.

We hereby declare that our start-up has not been blacklisted / debarred by any agency/state government/central government authority for any issues related with the directors/company.

We hereby declare that we have not taken/ taken assistance / subsidy/ incentives towards the registration of the same IPR under any scheme/ policy of State Government or Central Government scheme / agencies of any financial/ educational institution of the country or abroad. We have received aid amounting to INR....., and we are submitting an application for the remaining funds.

We understand that in case the assistance for IPR support is approved under this scheme, it is based on the information furnished by us and in case there is any significant deviation in core offering and other changes in the venture, We will keep the Department of Industries informed.

Name and Signatures of all the Team members

Signature of Founder:

Name:

Date: